

21 November 2022
Juror off sick

Monday, 21 November 2022
(10.30 am)

(Delay in proceedings)

(10.36 am)

(Inaudible -- no audio feed from court)

(In the absence of the jury)

Housekeeping

MR JUSTICE GOSS: -- juror is seeking medical attention but it will not be until late this afternoon that they can have a telephone appointment. I'm endeavouring to bypass the formalities of the process to see if that situation cannot be improved upon, but in any event it is clearly not going to be possible to sit today, unfortunately, on this case.

I'm hoping that we may be in a position to proceed tomorrow, but we simply won't know, I don't think, until tomorrow morning. So I don't see there's anything else that can be done at this stage.

MR JOHNSON: No. Well, we'll use the time to try to at least answer the jury's question and we'll send the answer to my learned friend for his medical advisers to consider the proposed answer at least.

MR JUSTICE GOSS: Yes.

MR JOHNSON: We think there is a relatively straightforward answer.

MR JUSTICE GOSS: All right. Other matters can be dealt with. I know that the time will be used to assist with the progress of the case generally.

MR MYERS: Yes. We are grateful for that and we most certainly can use the time with other matters.

So far as Ms Letby is concerned, we obviously will speak to her after this hearing today and use the time for that.

As for tomorrow, we shall wait to hear what comes from the court and if it appears that a hearing is not going to take place, if that's where we get to, then of course we shall notify the

prison or the court will to make sure Ms Letby isn't produced and we shall take instructions as to her position with regard to tomorrow, just to deal with the issues that we raised last time when we were in this position.

MR JUSTICE GOSS: Exactly. The difficulty is the appointment presently not being until 4 o'clock this afternoon.

MR MYERS: It's very unhelpful.

MR JUSTICE GOSS: It is particularly unhelpful. The situation is the situation.

MR MYERS: Yes.

MR JUSTICE GOSS: But as I say, I'm going to see if, given the consequences of not having a quicker appointment generally, which I needn't articulate, everyone will understand what they are, I'm just going to see if I can do that. I wouldn't, of course, ordinarily dream of doing it, but this is an unusual, if not unique, relatively unique, situation.

MR MYERS: It is and we're grateful for that, my Lord. We wait to see what comes of it if anything does.

Thank you.

MR JUSTICE GOSS: Thank you very much.

(In the presence of the jury)

MR JUSTICE GOSS: Good morning, members of the jury.

You will realise that you are one short in number.

Unfortunately, that particular juror is not fit to be at court today. As you know, the consequence of one of you not being available to give evidence is that we simply cannot proceed. I made this plain to you at the very outset of the case and so we cannot proceed today.

Whether we are going to be able to proceed tomorrow, I don't know. I'm doing my best to expedite matters, but I can't work miracles, so to speak.

So I'm very sorry. That is it for today. As far as tomorrow is concerned, you have the contact details for the jury officer. Any news that can be imparted to you will be imparted to you. Should it be the case that it is known this afternoon -- it will be late this afternoon -- that we cannot proceed tomorrow, then

there will be no need for you to come in tomorrow. But I just don't know the answer to that at the moment. I'm very sorry.

So that's it for today. Work on the basis that we will be proceeding, I hope, at 10.30 tomorrow morning, and if not, you'll be informed. All right?

And of course remember your responsibilities as jurors in this case: no communication by any means with anyone else or even with each other now because you are only 11, and no research about anyone or anything to do with this case. Thank you very much.

(In the absence of the jury)

As far as the defendant is concerned, you've heard Mr Myers saying he will come down and see her. So please don't remove her from the building until he has completed speaking to her this morning. Thank you very much indeed. I'm grateful to you.

Nothing else, Mr Johnson?

MR JOHNSON: No, thank you, my Lord.

MR JUSTICE GOSS: Mr Myers?

MR MYERS: My Lord, no thank you.

MR JUSTICE GOSS: Thank you both very much.

(10.43 am)

(The court adjourned until 10.30 am on Tuesday, 22 November 2022)